



Never meet a **hot** bench **cold**.

User Manual

The AI appellate-practice suite.

Built by appellate attorneys, for appellate attorneys

MyAppealCoach.com

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1. Introduction

MyAppealCoach is an AI-powered suite of preparation tools for appellate advocates. It was written by appellate attorneys, for appellate attorneys, and it allows attorneys and law students to practice for oral argument in a setting that once required a conference room full of colleagues. The application is available 24 hours a day and can be dialed into the exact type of panel and questions the practitioner is concerned about.

At the center of the suite is the world's first AI-powered Moot Court Simulator, where you upload your brief and argue your case before a panel of current or historic judges who interrupt with realistic questions and critique your answers. Around it sit companion tools: the always-free Appellate Navigator to help advocates identify relevant rules and procedure, Hot Bench Prep for anticipating the bench's questions, the Oral Argument Outline builder, and writing aids.

WHAT YOU CAN DO WITH IT

- **Practice oral argument** — argue your case aloud before an AI panel and get scored, with suggested stronger answers.
- **Learn from the bench** — hear a model argument delivered by an AI advocate, or practice rebutting the other side.
- **Navigate appellate procedure** — find your court's rules, deadlines, and procedure step by step (federal and Texas).
- **Prepare faster** — generate likely questions, build an argument outline, and tidy your authorities.

WHO IT IS FOR

MyAppealCoach is available to licensed attorneys and currently enrolled law students. It is a preparation tool. It does not provide legal advice, create an attorney-client relationship, or guarantee any result. All moot-court sessions are generated by artificial intelligence and do not represent the actual views of any judge or justice.



Argue before current and historic justices. My Appeal Coach is expanding into other courts as well.

2. The Moot Court Simulator

The Moot Court Simulator is the flagship of MyAppealCoach. You upload your brief, choose your court and panel, tune the session to the kind of bench you expect, and then practice — by argument, by rebuttal, or by listening to a model argument. This isn't a chat window: you speak into a microphone and justices interrupt with audible questions.

SETTING UP A SESSION (THE CONFIGURE SCREEN)

The screenshot shows the 'Configure session' interface. The left sidebar contains several sections for configuring the session:

- Case Name:** A text input field with the placeholder 'Smith v. Jones, No. 24-01234'.
- Brief (PDF):** A section with a 'DROP YOUR BRIEF HERE OR CLICK TO BROWSE' button and a note 'Please upload a brief up to 10 pages long'.
- Opponent's Brief (PDF):** A section with a 'DROP OPPONENT'S BRIEF OR CLICK TO BROWSE' button and a note 'The opponent's brief may be up to 10 pages long'.
- Choose your practice:** Three buttons: 'Practice Questions', 'Practice Rebuttal', and 'At moot'.
- Show suggested answers in real time:** A checkbox that is currently checked, with a note 'Leave this checked if you want immediate feedback as you answer each question. Uncheck if you want to go through your argument and answer feedback only at the end'.
- Influence your panel:** A section with three sliders: 'Argument time' (set to 10 minutes), 'Question frequency' (set to 1.5 / minute), and 'Question difficulty' (set to 5 / 10).
- What should the panel focus on?:** Two sections with sliders: 'Law / Cases / Statutes etc.' (set to 20%) and 'Policy / Effects' (set to 20%).
- If there are specific issues you'd like the bench to focus on or disregard, please explain here:** A text input field.
- Optional - e.g. focus on standing; skip the damages questions:** A text input field.
- I HAVE READ AND AGREE TO THE TERMS OF USE AND PRIVACY POLICY:** A checkbox.
- BEGIN ARGUMENT:** A button.

The right main area shows a virtual courtroom with a grid of 16 justice avatars. The avatars are arranged in a 4x4 grid. The top row includes 'Chief Justice Roberts', 'Justice Thomas', 'Justice Alito', and 'Justice Sotomayor'. The bottom row includes 'Justice Breyer', 'Justice Marshall', 'Justice Brennan', and 'Justice White'. The interface also shows 'U.S. Supreme Court' and 'Fifth Circuit' tabs at the top.

- **Log in** — sign in at the top of the screen (a monthly subscription, a single use, or a free trial).

Welcome to MyAppealCoach. Subscribe to a plan, log into your account, or buy a single use to begin.

SUBSCRIBE

LOG IN

BUY SINGLE USE (\$25)

TRY FOR FREE

If you are already a member, enter your email address, check the terms of use and privacy policy, and click to send a sign-in link. You will receive an email with a magic link that signs you in and takes you to the tool.

Sign in to your account

Please enter the email associated with your account. A one-click sign-in link will be sent.

Send sign-in link
Cancel

For added realism and to help advocates be better prepared and familiar with who they will appear in front of, the moot court simulators use the names, official photos, and a randomly synthesized voice of current and historic judges and justices. These are not affiliated with, endorsed by, or sponsored by any court, judge, or justice. All questions and commentary are generated by artificial intelligence and are randomly assigned to the judges and justices they do not reflect the views of any actual judge or justice and do not represent that any judge or justice would ask these questions or raise these issues. This is a practice tool and does not provide legal advice.

☒ I HAVE READ AND AGREE TO THE [TERMS OF USE](#) AND [PRIVACY POLICY](#).

If you are not yet a member, you can purchase a subscription or one-time use.

	PAY-AS-YOU-GO	BASIC	PRO
	\$25 PER SINGLE USE	\$100 PER MONTH	\$250 PER MONTH
Writing Coach	\$25	UNLIMITED	UNLIMITED
Table of Authorities	\$25	UNLIMITED	UNLIMITED
Hot Bench Prep	\$25	counts toward 10/mo	UNLIMITED
Oral Argument Outline	\$25	counts toward 10/mo	UNLIMITED
Moot Court Simulator	\$25	counts toward 10/mo	counts toward 50/mo

Pay-as-you-go

\$25
PER SINGLE USE

- One use, valid on any of the five tools.
- No subscription, no monthly commitment.
- Coupon codes accepted at checkout.

BUY SINGLE USE (\$25)

Basic

\$100
PER MONTH

- Unlimited Writing Coach & Table of Authorities.
- 10 pooled uses/month across the other three tools.
- Overage uses at \$10 each.
- Free MyAppealCoach coffee mug ☕, shipped to you.
- Cancel anytime via Manage Billing.

SUBSCRIBE TO BASIC

Pro

\$250
PER MONTH

- Unlimited Writing Coach, Table of Authorities, Oral Argument Outline, & Hot Bench Prep.
- 50 uses/month of the Moot Court Simulator.
- Overage uses at \$10 each.
- Free MyAppealCoach coffee mug ☕, shipped to you.
- Cancel anytime via Manage Billing.

SUBSCRIBE TO PRO

- **Name your case and upload your brief** — drop in your brief as a PDF. You may also add your opponent's brief so the panel understands both sides. These are public documents, and nothing privileged is shared.

Configure *session*

Upload your brief, set the bench's appetite for questions, and pick your panel.

CASE NAME *(For your records and .pdf transcript.)*

Smith v. Jones, No. 24-1234

BRIEF (PDF)

DROP YOUR BRIEF HERE OR CLICK TO BROWSE

Please upload a brief up to 80 pages long.

OPPONENT'S BRIEF (PDF) — *Optional*

DROP OPPONENT'S BRIEF OR CLICK TO BROWSE

The opponent's brief may be up to 80 pages long.

- **Choose your court** — argue before the U.S. Supreme Court, Fifth Circuit, or Texas Supreme Court. Each has its own bench, and you can select a full court or choose a panel of three to nine judges or justices. More courts are being added.

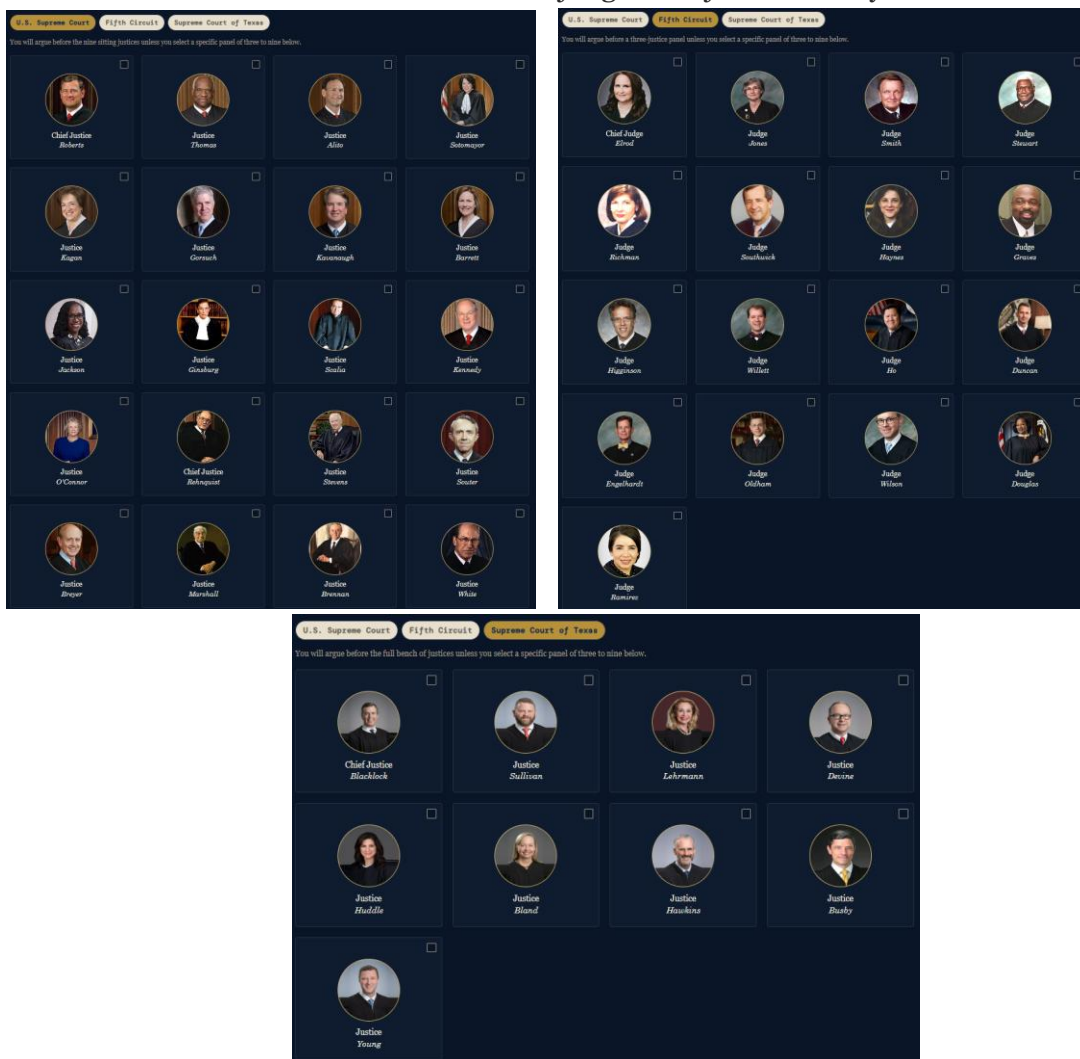
U.S. Supreme Court

Fifth Circuit

Supreme Court of Texas

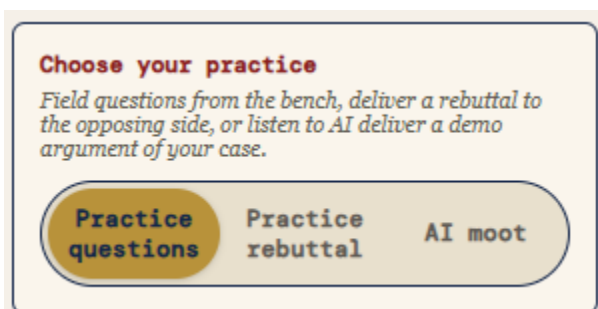
You will argue before the nine sitting justices unless you select a specific panel of three to nine below.

- **Pick your panel** — by default, if you select the U.S. or a state Supreme Court, you will argue in front of the full court. If you select an intermediate appellate court, you will argue before a panel of three judges or justices. However, you can adjust this and argue before anywhere between three and nine current or historic judges and justices that you select.



THREE WAYS TO PRACTICE

Choose how you want to practice. Each mode is described in its own section below: Practice Questions (you argue and field the bench's questions), Practice Rebuttal (you rebut the other side), and AI Moot (you listen as an AI advocate argues your case).



3. Practice Questions (Mode 1)

Practice Questions puts you at the podium. You deliver your argument aloud, and the panel interrupts with realistic questions drawn from each judge’s judicial philosophy — just like a real hot bench. Chrome or Edge is required, and the simulator asks for microphone access so it can hear you. There are a few additional steps to configure a Practice Questions session.

CONFIGURING THE SESSION

- **Learning mode or realistic mode** — leave “Show suggested answers” checked to get immediate coaching after each question, or uncheck it to receive critiques only at the end.

☒ **Show suggested answers in real time.**
Leave this checked if you want immediate feedback as you answer each question. Uncheck if you want to go through your argument and receive feedback only at the end.

- **Tune the session** — sliders set the argument length (five to 20 minutes), how often the bench interrupts (0.8 times per minute to twice per minute), and the difficulty of the questions (1 to 10 scale). A difficulty of seven or higher yields longer questions, a greater likelihood of the Court asking follow-up questions, and uses a different AI model (Sonnet vs. Opus). However, question difficulty is subjective, and you should try the simulator at different levels using both models.

Influence your panel

ARGUMENT TIME 10 minutes



About 13 questions on a medium bench.

QUESTION FREQUENCY 1.3 / minute



Moderate bench — steady questioning

QUESTION DIFFICULTY 5 / 10



Balanced practice — realistic mid-level moot court
Difficulty depends on the attack surface in your brief; very high settings may not be fully achievable on well-prepared cases.

QUESTION DIFFICULTY 8 / 10



Tough bench — sustained pressure on weak points
OPUS MODEL — MAY TAKE LONGER TO GENERATE QUESTIONS.
Difficulty depends on the attack surface in your brief; very high settings may not be fully achievable on well-prepared cases.

- **Tell the Court what to focus on (sliders)**— sliders let you control what the panel concentrates on. You can request questions about the record between 10 and 40 percent of the time. You can request questions about policy between 10 and 40 percent of the time. Sliders automatically adjust so that the total is 100 percent. Questions about cases and statutes will always be between 40 percent and 80 percent, depending on the other sliders.

What should the panel focus on?

LAW / CASES / STATUTES 40%
Share of questions on specific cases & statutes — set by the two sliders below (kept between 40% and 80%).

RECORD / FACTS 50%
Questions naming a specific record cite or fact.

POLICY / EFFECTS 10%
Questions about the practical effects of your position.

What should the panel focus on?

LAW / CASES / STATUTES 40%
Share of questions on specific cases & statutes — set by the two sliders below (kept between 40% and 80%).

RECORD / FACTS 10%
Questions naming a specific record cite or fact.

POLICY / EFFECTS 50%
Questions about the practical effects of your position.

- **Tell the Court what to focus on (text)**—you can also type a text message to ask the Court to focus on (or avoid) particular issues. You can phrase this any way you want, and it is a particularly helpful feature to drill down one issue, or for law school moot court teams, where each member may be addressing a particular issue.

If there are specific issues you'd like the Court to focus on or disregard, please explain here.

Use this to steer the Court toward an area you want to practice. To avoid confusing the Court, please focus your request on relevant issues of law or fact.

Please focus on the first issue and do not ask any questions about the second issue.

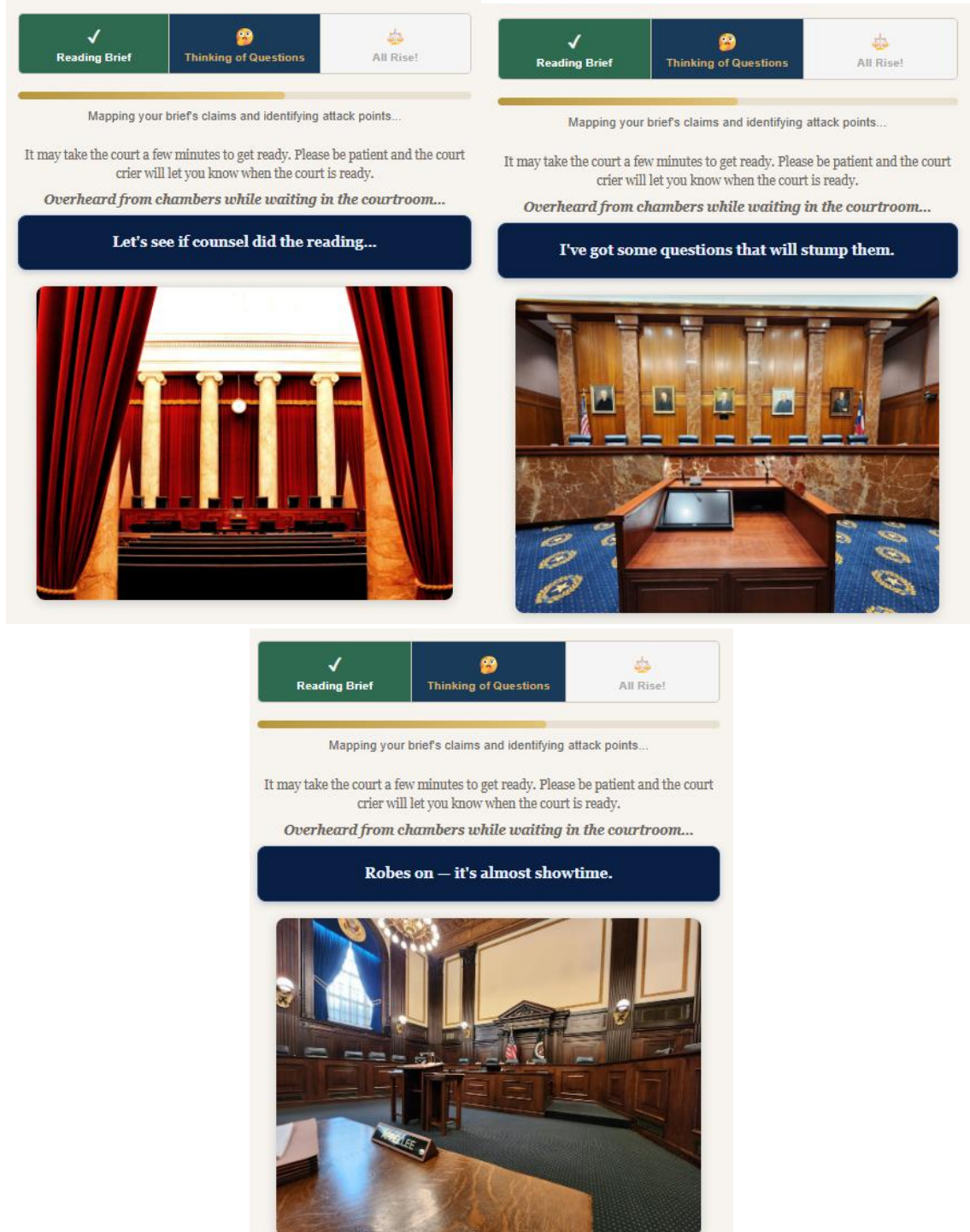
The Court honors reasonable requests, but will deny unreasonable ones. When you start the argument, the Court will display a banner explaining whether it honored your request and how it steered the questions.

Chief Justice Roberts Justice Thomas Justice Alito Justice Sotomayor Justice Kagan Justice

At Counsel's request, the Court is focusing exclusively on the first issue and will not ask questions about the second issue.

HOW A SESSION RUNS

- **Waiting for court to start** — it takes a few minutes for AI to read your brief and prepare for a session. You will wait in the courtroom where your argument is scheduled. The system will update you on the Court's progress and provide entertaining messages overheard coming from chambers as the judges or justices get ready.



Alternative pages for the U.S. Supreme Court, Texas Supreme Court, and Fifth Circuit.

- **Opening** — after the court is gaveled into session and the crier calls it to order, click to Begin Argument. A timer will show how much time is left (and turn red as you get close to the end of your time). Your words are transcribed on screen a few seconds after you speak.

Moot Court Simulator
MyAppealCoach.com — AI-Powered Preparation for the Bench

myappealcoach ADMIN
myappealcoach@gmail.com

1000000 / 1000000 USES REMAINING
Next reset November 1, 2026

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[WRITING COACH](#) [TABLE OF AUTHORITIES](#) [MOOT COURT SIMULATOR](#) [HOT BENCH PREP](#) [ORAL ARGUMENT OUTLINE](#)

Oral Argument Session

PANEL · 9 JUSTICES

Chief Justice Roberts
 Justice Thomas
 Justice Alito
 Justice Sotomayor
 Justice Kagan
 Justice Gorsuch
 Justice Kavanaugh
 Justice Barrett
 Justice Jackson

At Counsel's request, the Court is focusing exclusively on the first issue and will not ask questions about the second issue.

NOW SPEAKING Counsel

Your spoken argument will appear here a few seconds after you speak. Keep going — the transcript will catch up.

Your spoken argument will appear here...

10:00

LIVE AUDIO

Microphone Inactive

SESSION

Questions 0

Words 0

Question 0 of 13

BEGIN ARGUMENT

END SESSION & GET REBUTTAL REPORT

9

- **Questions from the bench** — you have at least 30 seconds of uninterrupted time to give your opening. After that, judges will appear and ask questions. When they do, click the gold “Answer” button and then speak into the microphone.



● NOW QUESTIONING

Justice Busby

QUESTION 6 · LAW / CASES / STATUTES

Counsel, Miranda requires that when pleadings merely fail to allege sufficient jurisdictional facts—as opposed to affirmatively negating jurisdiction—the plaintiff must get leave to amend. Did the trial court make that distinction, and if not, shouldn't we remand rather than affirm?

YOUR ANSWER (TRANSCRIBED)

Click “Answer” and speak your response...

ANSWER

← Click here when you're ready to speak.

When you're finished speaking, click the “Submit Answer” button.



● NOW QUESTIONING

Justice Busby

QUESTION 6 · LAW / CASES / STATUTES

Counsel, Miranda requires that when pleadings merely fail to allege sufficient jurisdictional facts—as opposed to affirmatively negating jurisdiction—the plaintiff must get leave to amend. Did the trial court make that distinction, and if not, shouldn't we remand rather than affirm?

YOUR ANSWER (TRANSCRIBED)

Recording... (click Submit Answer when done)

SUBMIT ANSWER

← Click here when you're finished.

- **Follow-up questions** — the Court may ask one or two follow-up questions. These questions will generally occur when the Court isn't satisfied with an answer. But, like real jurists, they sometimes focus on an issue that may not seem important.

- **Immediate feedback (optional)** – if you selected learning mode, the timer will stop and you will receive immediate feedback. The feedback will always include: (1) What worked, (2) What you can improve, and (3) A recommended stronger answer. If something went very badly (for example, you misstated facts or law), you will also receive red text that explains the critical error. When you're ready, click the gold "Continue Argument" button.



● NOW QUESTIONING

Justice Barrett

QUESTION 1 · RECORD / FACTS

The record at ROA.1347 and 1364-65 shows Brewer was trained that the 'Taser is 'the best method' for excited delirium. Doesn't that characterization suggest the training itself was the moving force behind the shooting rather than evidence of constitutionally adequate preparation?

YOUR ANSWER (TRANSCRIBED)

No, not at all.

What worked: The advocate correctly identified the right ultimate answer — denying that the training was the moving force — which at least signals they understand the stakes of the question.

Improve: Develop a substantive response: explain that 'best method' language in training materials reflects options and sound professional guidance, not a mandate that creates a constitutional duty to use the Taser in every situation, and pivot to the split-second threat assessment that justified using lethal force when Thomas was within four feet and advancing — arguing the training actually shows the county's deliberate indifference is absent, not present.

STRONGER ANSWER

No. The 'best method' language reflects sound, options-based training, not a constitutional floor that eliminates officer discretion. Training that identifies a preferred tool for a particular threat profile is precisely what Monell requires — deliberate preparation for foreseeable encounters. The question is whether the training was so deficient that the resulting constitutional violation was essentially inevitable. Here, it was not. Brewer was trained, equipped with a Taser, and aware of excited delirium protocols. His split-second decision to use lethal force instead arose because Thomas had closed to within four feet of a retreating officer after ignoring at least seven commands to stop — a distinct threat calculus the training cannot anticipate in every permutation. If anything, the existence of this training defeats a Monell moving-force argument: it shows the county was deliberately preparing officers for exactly these encounters, not deliberately indifferent to them.

CONTINUE ARGUMENT

AFTER THE ARGUMENT

- **Scorecard** — the session ends with a scorecard rating your performance across the panel's questions. This is an abbreviated report that displays while the full report is generating. Don't close your window until the full report is finished.
- **Coaching report** — a full written report — your transcript, the questions, and suggested answers — is emailed to you so you can review before your next round. You receive a score based on your substantive arguments and your style. You also receive:
 - **A Summary**
 - **Your Best Answer (your best quote)**
 - **An Area to Work on**
 - **Each question, answer, and suggested better answer**
 - **A transcript**

Here's how your argument went.

Substantive Arguments

82



Measures the legal quality of your answers to the bench.

Style

79



Analyzes grammar, word choice, and professionalism.

Confident, well-organized delivery with authority at your fingertips. A few answers ran long or leaned on dictionary definitions where a single textual hook would have landed harder.

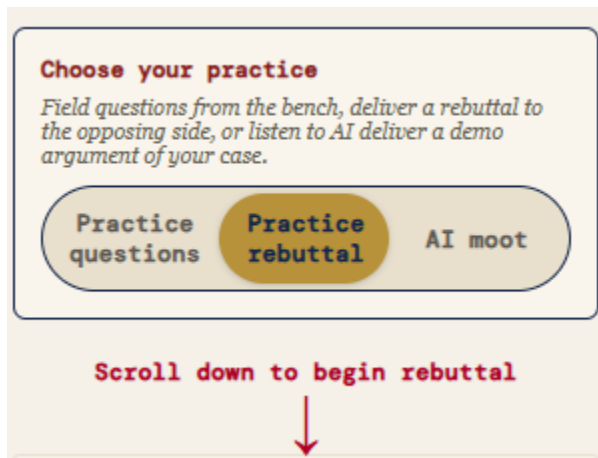
SUMMARY

A well-prepared defense of a difficult position under a hot bench. You consistently had a case ready and used the statute's structure and the Act's purpose to good effect. Your best moments were concrete and record-based; your weaker moments answered a question the Justice did not quite ask — meeting a logical objection with a lexical reply, or a clear-statement demand with a purpose argument.

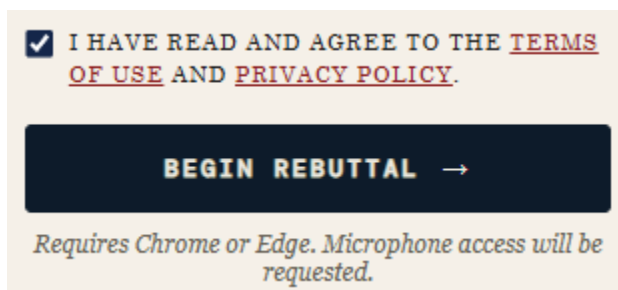
4. Practice Rebuttal (Mode 2)

Rebuttal is the hardest part to practice alone. In Practice Rebuttal, the simulator plays a short argument for the opposing side — about three minutes — and then gives you roughly three minutes to respond to as many of its points as you can. Practice Rebuttal uses the same brief and panel you configured, so the opposing argument is grounded in your actual case rather than a generic script.

If you select Practice Rebuttal, you do not fine-tune the questions.



Scroll down, check the box, and click “Begin Rebuttal”



HOW IT WORKS

- **Listen to the opponent** — the other side’s argument is delivered aloud so you can note the points you most need to answer. If you want, you can also read a transcript of the argument in real-time. After a 30-second opening, the Court will ask your opponent questions, and your opponent will answer.

OPPOSING ARGUMENT — PLEASE WATCH

Opposing counsel for the Appellant, Piney Point Homes, LLC is arguing the side ADVERSE to your brief: Reversal of the trial court's order granting the Plea to the Jurisdiction so that Piney Point Homes, LLC's claims against Marilyn Burgess may proceed to the merits.

Justice Elena Kagan

Scarver is directly on point from this same court — Chapter 117 doesn't waive immunity or create a private cause of action. How do you distinguish it, and why shouldn't we simply follow our own precedent?

Speaking...

End early

OPPOSING ARGUMENT — PLEASE WATCH

Opposing counsel for the Appellant, Piney Point Homes, LLC is arguing the side ADVERSE to your brief: Reversal of the trial court's order granting the Plea to the Jurisdiction so that Piney Point Homes, LLC's claims against Marilyn Burgess may proceed to the merits.

Opposing counsel

Scarver involved missing funds with no identifiable statutory breach. Here, the District Clerk deviated from the court's own order, which required disbursement pursuant to Berleth's specific wiring instructions — not substitute instructions arriving by unverified email weeks later. When a clerk acts outside the four corners of a court order, she exceeds her statutory role. That conduct is categorically different from what Scarver addressed, and this Court should not extend Scarver to immunize departures from explicit judicial directives.

Speaking...

End early

- **Deliver your rebuttal** — when it is your turn, speak your response; the clock keeps you to a realistic rebuttal length.

Justice John Roberts

"Counsel, you may give a three-minute rebuttal. Click **Begin Argument** when you are ready."

The bench will stay silent unless your rebuttal misstates the facts or the law.

Begin Argument

Your rebuttal 2:53

Listening... speak your rebuttal.

Finish rebuttal

- **Listen to the computer's recommended rebuttal** — you can choose to hear how AI would have argued your rebuttal.

Nicely argued.

Would you like to hear the computer's recommended rebuttal?

No, show my results

Yes, play it

RECOMMENDED REBUTTAL — PLEASE LISTEN

Counsel (model rebuttal)

May it please the Court. Opposing counsel has framed this case as a story about a District Clerk who abandoned her statutory duties and left a party without a remedy. The record tells a different story, and I want to address each of their points directly. First, on Scarver. Opposing counsel tried to distinguish Scarver by arguing that the District Clerk here departed from the court's order. But that distinction does not hold up against the actual record. The April 18th order directed the District Clerk to disburse funds in accordance with Berleth's specific wiring instructions. Berleth — the court-appointed receiver himself — and counsel for the recipient sent those instructions from a confirmed email address with a written explanation for the account change. The County Auditor reviewed and approved the transaction. The District Clerk did not go outside the court order. She followed instructions that originated with the very person the order designated to provide them. Scarver controls: Chapter 117 allocates administrative responsibility among governmental entities. It does not waive immunity, and it does not create a private cause of action. That is the law of this Court, and nothing in this record gives reason to depart from it. Second, on causation. Opposing counsel called the County Auditor's approval a mere procedural checkpoint. But it is far more than that. The Auditor's independent review and approval is a structural feature of the disbursement process. And critically, it was the receiver himself — Robert Berleth — who waited two weeks after this transfer, two weeks, before raising any alarm. He then produced a forged affidavit for the wrong account and claimed hackers had intercepted his email and bank accounts. The District Clerk is not the author of that loss. A sophisticated third-party fraud, ratified by silence from the very person who should have caught it, broke any causal chain before it could reach the District Clerk's door. Third, on the impossible-standard concern. Opposing counsel embraced Justice Jackson's framing and said they only want a merits record. But the plea to the jurisdiction is a threshold question about whether the Legislature has waived immunity at all — and it has not. Allowing merits discovery to proceed against a governmental official absent a clear legislative waiver is itself the harm sovereign immunity is designed to prevent. The remedy for sophisticated fraud is not to expose district clerks to unlimited civil liability whenever funds go missing after a court-authorized disbursement. The trial court correctly recognized that the Legislature has not waived immunity under Chapter 117. This Court should affirm.

Skip to your results »

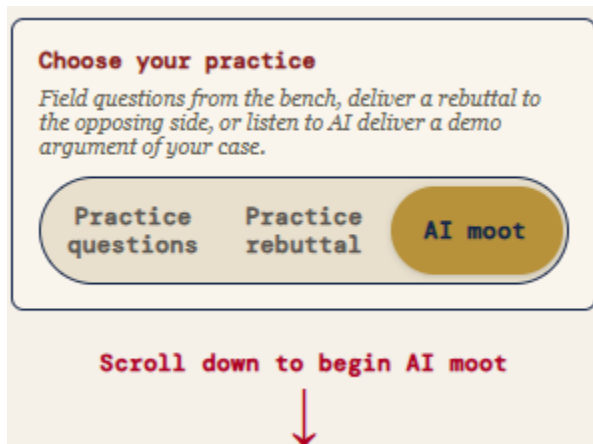
- **Get scored** — the tool evaluates how completely and effectively you answered the opposing points, so you can see which arguments you let slip.

The scorecard provides a score, critique, quote from your strong moment, and an area to work on. It also lists how you responded to the other side's points (usually around five points).

5. AI Moot (Mode 3)

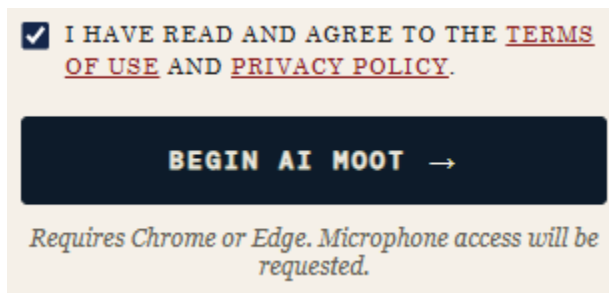
AI Moot is listen-only. Instead of arguing yourself, you sit back and let an AI advocate deliver a full argument of your case and field the panel's questions. It is the fastest way to see how a polished argument sounds and to hear how a strong advocate handles a hot bench on your facts.

If you select AI moot, you don't have the option to fine-tune the questions and can immediately begin the session. Many advocates use AI Moot first — to hear a model argument — and then switch to Practice Questions to deliver their own.



The screenshot shows a selection interface titled "Choose your practice" in red. Below the title is a descriptive sentence: "Field questions from the bench, deliver a rebuttal to the opposing side, or listen to AI deliver a demo argument of your case." There are three buttons: "Practice questions", "Practice rebuttal", and "AI moot". The "AI moot" button is highlighted with a gold background. Below the buttons, the text "Scroll down to begin AI moot" is displayed in red, with a red arrow pointing downwards.

Scroll down, check the box, and click "Begin AI Moot"



The screenshot shows a checkbox that is checked, followed by the text "I HAVE READ AND AGREE TO THE [TERMS OF USE](#) AND [PRIVACY POLICY](#)." Below this is a large dark blue button with the text "BEGIN AI MOOT →" in white. At the bottom, a note states: "Requires Chrome or Edge. Microphone access will be requested."

WHAT YOU HEAR

- **No microphone needed** — because you are listening rather than speaking, AI Moot needs no mic; it is ideal for studying an argument on the go.
- **Your case, your panel** — the model argument is built from the brief you uploaded and the court and panel you selected.
- **A complete argument** — the AI advocate reads your name from the brief, introduces you to the Court, gives an introduction, signposts the issues, and argues the case. It answers questions from the Court. You can listen, pause, or download the transcript at any time.

Here is a sample introduction, followed by a few examples of questions and answers.

AI Demo Argument

Seth Hopkins for Harris County, Texas — a model oral argument of your case.

PANEL · 9 JUSTICES


Chief Justice
Roberts


Justice Thomas


Justice Alito


Justice Sotomayor


Justice Kagan


Justice Gorsuch


Justice Kavanaugh


Justice Barrett


Justice Jackson

NOW SPEAKING **Seth Hopkins**

Segment 1 of 20 **14:39**

Seth Hopkins: May it please the court, this is Seth Hopkins representing Harris County, Texas. This court should affirm the summary judgment for the County because every one of these claims founders on the same bedrock principle: a municipality is not liable under section 1983 for the acts of an officer who violated its constitutional policies. Monell forbids respondeat superior liability, and that is precisely what Appellants ask for here.

▮ PAUSE

NEW ARGUMENT

↓ DOWNLOAD TRANSCRIPT (PDF)

Justice Gorsuch: You rely heavily on the firing. But couldn't a jury see the termination and acquittal as window dressing—punishing one officer while the systemic problem goes unaddressed? Why doesn't that factual dispute go to a jury?

Seth Hopkins: Justice Gorsuch, because Monell liability turns on the existence of a municipal policy, not a jury's view of the County's sincerity. The firing is relevant for one reason only: it is undisputed proof that Brewer's conduct departed from County policy. When an officer violates policy, the policy cannot be the moving force. That is a legal conclusion, not a credibility question. Appellants have adduced no evidence of any prior similar incident—no pattern—so there is simply nothing for a jury to weigh on the deliberate-indifference element. The absence of a genuine dispute is what Rule 56 is for.

...

Justice Kagan: Isn't that your problem rather than your defense? Brewer was trained to use the Taser on an excited-delirium subject, believed Thomas was exhibiting excited delirium, and then shot him anyway. Doesn't that show the training didn't take—that it was inadequate as applied?

Seth Hopkins: Justice Kagan, it shows the opposite under Canton. The fact that a well-trained officer departed from his training proves the shortcoming was the officer's, not the program's. Canton holds that an individual officer's failing does not establish a faulty training program, because otherwise every constitutional violation would become a training claim—*de facto* respondeat superior, which Canton forbids. When an officer is trained on the exact scenario he faced and acts contrary to that training, no additional course would have prevented the violation. That is ShumPERT: the deficiency must be the actual cause, and proof that better training might have helped is not enough.

...

Justice Alito: Their expert, DeFoe, identified courses he says were missing. Why isn't that enough to raise a fact question on adequacy?

Seth Hopkins: Justice Alito, because DeFoe's opinion is legally insufficient under *Conner v. Travis County*. He recommended vaguely-titled courses—"Working as a Team," "Cover and Concealment"—without explaining their relevance or identifying any constitutionally required course that was missing. He admitted he did not know whether Texas law even required the additional weapons he recommended. And Appellants conceded below that Brewer's training comports with Texas-law minimums. Under *Sanders-Burns*, once an officer meets the state minimum, the plaintiff must show the minimum itself is constitutionally inadequate—a showing they never attempted. An expert's say-so without underlying data cannot defeat summary judgment.

6. The Appellate Navigator

The Appellate Navigator is a free resource worth bookmarking. It collects what you need to prepare an appeal in one place. It contains local federal and state appellate rules (Texas, California, Florida, Illinois, and Georgia), links to oral-argument recordings in those jurisdictions, online style guides, and research tools. Its centerpiece is the Procedure Navigator.

[Home](#) [Moot](#) [Fantasy Moot](#) [Appellate Navigator](#) [FAQ](#) [Contact Us](#)

*Never meet a **hot** bench cold.*

Appellate Navigator

Everything you need to prepare an appeal, in one place. Start with the procedure guide to find your court's rules, then write your brief, get ready for oral argument, and put the AI tools to work.

[▶ Learn More](#)

Procedure Navigator

Use our Appellate Procedure Navigator to help identify your court's rules and procedures for different types of appeals. It includes checklists, deadlines, examples, and links to relevant rules and templates.

[Open the Federal Procedure Navigator](#)
[Open the Texas Procedure Navigator](#)

Write Your Brief

Appellate courts grant oral argument to only a small percentage of appeals, and chances are, your appeal will be decided based on the briefs. This is your one-stop-shop for reviewing the appellate rules and finding free legal research and style guide help.

[Local Rules](#)

Appellate rules for every federal circuit, the U.S. Supreme Court, and Texas, California, Florida, Illinois, and Georgia.

[Online Style Guides & Free Legal Research](#)

Links to Bluebook style guide assistance and free legal research tools.

Prepare for Oral Argument

Has oral argument been granted in your case? Congratulations! The Court feels strongly enough about the merits that they want to hear from you in person. But this isn't just about telling your story. Some of the most distinguished jurists in the nation will ask you questions about facts, points of law, and even hypotheticals about your case's effect on future litigants. The resources below link to example oral arguments around the country.

[Oral Argument Recordings](#)

Watch or listen to oral argument recordings for every federal circuit, the U.S. Supreme Court, and the Texas, California, Florida, Illinois, and Georgia supreme courts.

The Appellate Navigator home — rules, research, and the Procedure Navigator in one place.

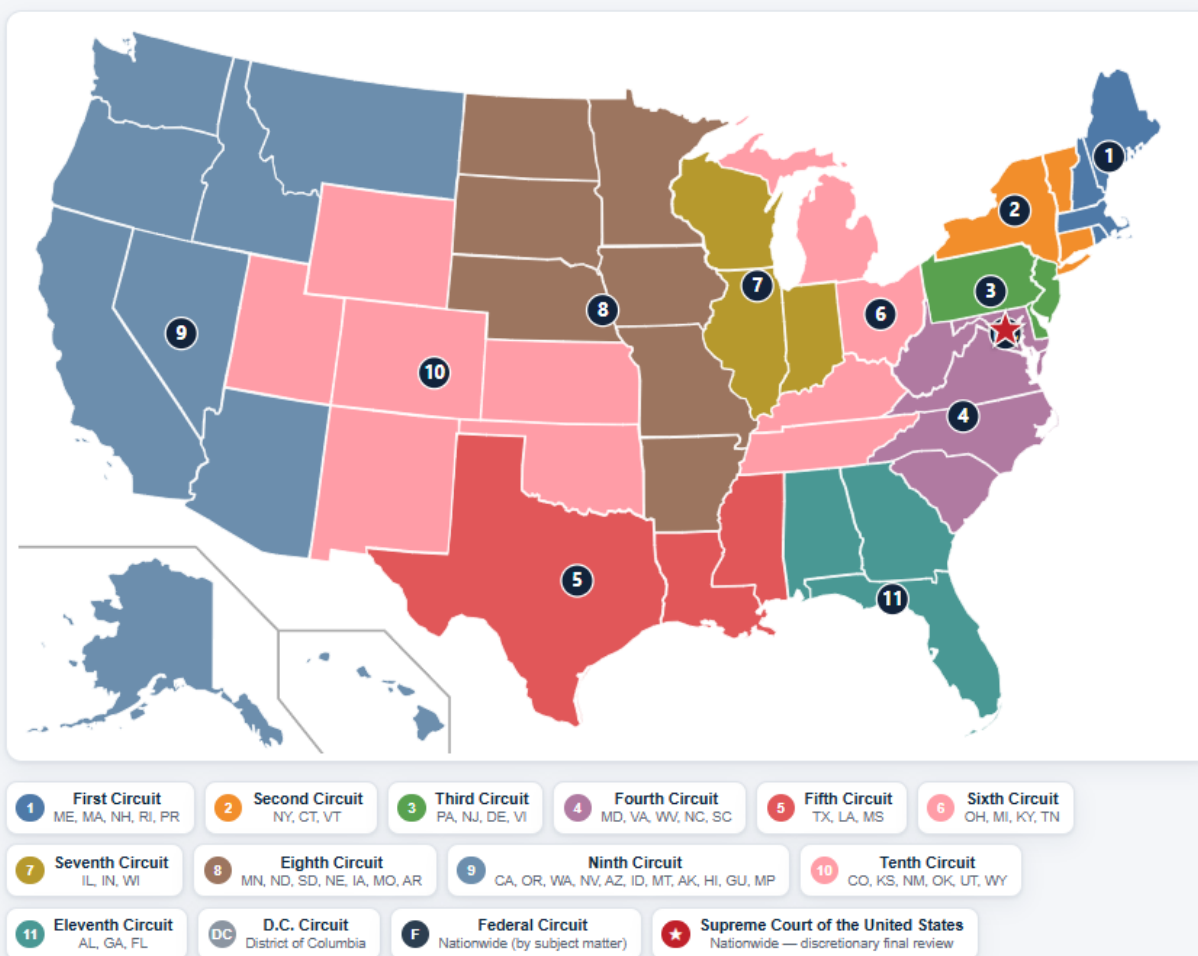
PROCEDURE NAVIGATOR — FEDERAL

The Procedure Navigator walks you through procedural questions of a federal appeal. Click your circuit on the map, choose your posture — for example, appealing a final judgment — and the tool lays out the steps with the governing rules and statutes: confirming the judgment is truly final, perfecting the appeal, the deadlines under Rule 4, admission to the circuit, logging into PACER and filing, ordering transcripts, citing the record, and assembling your brief and appendix, with links to the court’s official resources.

STEP 1

What appellate court are you in?

Click your circuit on the map, or choose it from the list below. Geographic boundaries of the U.S. Courts of Appeals are shown; the Federal Circuit hears appeals by subject matter nationwide.



Appellate Navigator is in the testing phase, and we need your help to improve. If you find an error or have a suggestion, please click here: [Trouble?](#)

Pick your circuit on the map to start the federal Procedure Navigator.

STEP 2 · FIFTH CIRCUIT

What would you like to do?

Select the posture that fits your matter. Each path walks through the governing rules, deadlines, checklists, and templates.

1 Appeal a final judgment

The case is over in the district court and you want review of the final decision. (28 U.S.C. § 1291)

2 Respond to an appeal

You are the appellee/respondent. Threshold defenses, motions to dismiss, whether to cross-appeal, deadlines, and the appellee's brief.

3 File an interlocutory appeal

Seek review before final judgment — injunctions, a certified question, or a collateral order.

4 Petition for review of an agency order

Review of a federal agency order (immigration, NLRB, EPA, FERC, etc.) — a separate route into the court under FRAP 15.

5 Criminal or habeas appeal

Direct criminal appeals, release pending appeal, and habeas / § 2255 appeals requiring a certificate of appealability.

6 File a petition for mandamus

Ask the court of appeals for an extraordinary writ directing the trial court to act or refrain. (FRAP 21)

7 Seek rehearing or a Supreme Court writ

Panel rehearing, rehearing en banc, or a petition for certiorari after the panel decides.

8 Something else

Motions, extensions, stays pending appeal, voluntary dismissal, costs and sanctions, and more.

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Click on what you're trying to do.

Appealing a Final Judgment

The standard appeal under 28 U.S.C. § 1291 — from confirming finality through perfecting the appeal, obtaining the record, and briefing.

■ Rules restyled effective Dec. 1, 2024

The Federal Rules of Appellate Procedure were reorganized and restyled effective **December 1, 2024**. Most notably, former **Rule 35 (en banc)** was **abrogated and merged into Rule 40**, which now governs both panel rehearing and rehearing en banc. If you are working from an older treatise or local-rule set, confirm the current rule number before filing.

✓ Step 1 — Confirm the judgment is truly final

- ☐ The district court has disposed of all claims against all parties (watch counterclaims, crossclaims, third-party claims).

28 U.S.C. § 1291

- ☐ Judgment is set out in a separate document and entered on the docket — the appeal clock runs from entry.

Fed. R. Civ. P. 58

- ☐ If fewer than all claims/parties are resolved, there is a valid Rule 54(b) certification (an ultimate disposition + an express "no just reason for delay" finding).

Fed. R. Civ. P. 54(b)

- ☐ An unresolved attorney's-fees motion generally does not defeat finality of the merits judgment.

28 U.S.C. § 1291

- ☐ No pending tolling motion under Rule 4(a)(4) is still resetting the appeal clock.

FRAP 4(a)(4)

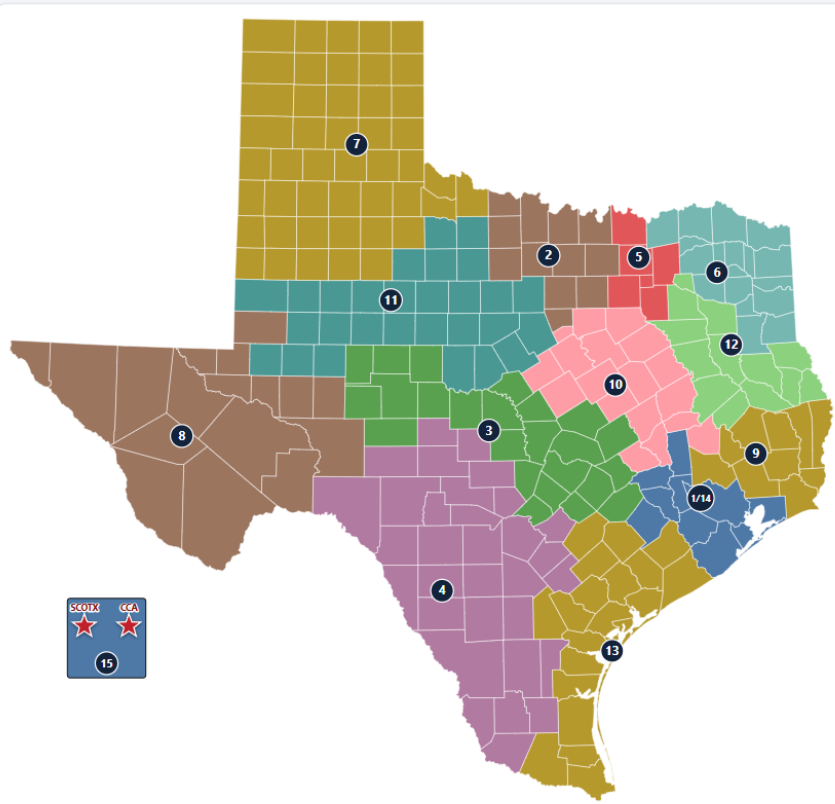
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PROCEDURE NAVIGATOR — TEXAS

The Procedure Navigator also covers the Texas courts, including the state’s new Fifteenth Court of Appeals. Choose your county to find your Court of Appeals — or pick any court directly, including the Supreme Court of Texas and the Court of Criminal Appeals — and follow the same step-by-step guidance for Texas practice.

STEP 1
Which Texas appellate court are you in?

Click your county on the map to pick its Court of Appeals — or choose any court from the list below. A few counties are shared by two courts (Houston’s 1st/14th, plus small 5/6 and 6/12 overlaps); clicking one lets you choose. The statewide Fifteenth Court of Appeals and the two courts of last resort — the Supreme Court of Texas (civil) and the Court of Criminal Appeals (criminal) — are in the list.



1 First Court of Appeals
Houston

2 Second Court of Appeals
Fort Worth

3 Third Court of Appeals
Austin

4 Fourth Court of Appeals
San Antonio

5 Fifth Court of Appeals
Dallas

6 Sixth Court of Appeals
Texarkana

7 Seventh Court of Appeals
Amarillo

8 Eighth Court of Appeals
El Paso

9 Ninth Court of Appeals
Beaumont

10 Tenth Court of Appeals
Waco

11 Eleventh Court of Appeals
Eastland

12 Twelfth Court of Appeals
Tyler

13 Thirteenth Court of Appeals
Corpus Christi & Edinburg

14 Fourteenth Court of Appeals
Houston

15 Fifteenth Court of Appeals
Austin — statewide civil (state/agency & Business Court)

SC Supreme Court of Texas
Civil & juvenile — court of last resort

CC Court of Criminal Appeals
Criminal — court of last resort

Appellate Navigator is in the testing phase, and we need your help to improve. If you find an error or have a suggestion, please click here: [Trouble?](#)

The Texas Procedure Navigator, keyed to county and court.

7. Hot Bench Prep

Hot Bench Prep helps you get ready for the bench without running a full moot. Upload your brief and the tool generates the questions a panel is most likely to ask — the weak points, the hard hypotheticals, and the authorities a judge will test you on — so you can rehearse your answers before argument day.

HOW TO USE IT

- **Upload your brief** — point the tool at the brief you want to be questioned on.
- **Set how hard and how many** — choose the difficulty and the number of questions you want to prepare against.
- **Get your question set** — the generated questions are delivered as a document you can print and work through, alone or with a colleague.

Hot Bench Prep is the lighter-weight companion to the Moot Court Simulator: no microphone, no live session — just the questions, ready to study.

8. Oral Argument Outline

The Oral Argument Outline builder turns your brief into a start of an outline. While it is still too long for most advocates, it's a good place to start.

WHAT IT PRODUCES

- **A structured outline** — your argument organized into a clean, followable sequence.
- **Keyed to your authorities** — the points are tied to the cases and record you are relying on.

9. Fantasy Moot

Fantasy Moot puts you at the lectern in landmark U.S. Supreme Court cases, arguing before the simulated justices who actually heard them. There is no brief to upload and nothing to prepare in advance: pick a case, read the background, and argue.

The outcomes of these cases seem obvious today, but the advocates who argued them faced uphill battles. The bench puts you through the same procedural hurdles they faced, with questions that reflect each justice’s documented judicial philosophy. Do you think you can do better? Let’s find out.

THE CASES

- ***Brown v. Board of Education (1954)*** — whether separate public schools, equal in every measurable respect, violate the Equal Protection Clause. This is the flagship Fantasy Moot case.
- ***Gideon v. Wainwright (1963)*** — whether a state must provide counsel to an indigent defendant in an ordinary felony case.
- ***Miranda v. Arizona (1966)*** — what police must tell a suspect in custody before questioning, and what happens if they don’t. Decided 5–4, it is the hardest bench on the list.
- ***Loving v. Virginia (1967)*** — whether a state may criminalize marriage between two people because of their races.
- ***Tinker v. Des Moines (1969)*** — whether public school students keep their First Amendment rights at school.

HOW IT WORKS

- **Choose a case** — each case page sets out the question presented, the bench that heard it, and the background, with links to the original briefs and oral argument.
- **Argue the case** — click “Argue the Case” and make your argument. The justices interrupt with questions, just as the real Court did.
- **Learn as you go** — you get suggestions for stronger answers during the argument, and a transcript and critique of your argument when it ends.



Getting Started

To begin, visit app.myappealcoach.com and sign in — there is no password; the app identifies you by your name and email, and your plan (subscription, single use, free trial, or a comped pass) is tied to that email. Then upload a brief and choose a tool. The free Appellate Navigator needs no brief at all.

All you need to run a moot is a copy of your brief. If you receive an invitation link, clicking it signs you in automatically and activates your pass; to return later, click the link again or log in with the same email address.

SUPPORT

Questions, or want to try a session on us? Visit myappealcoach.com and use the Contact page — we are happy to help. MyAppealCoach provides preparation tools only and does not provide legal advice.